

		1161[FEHA disability discrimination may form the basis of a common law claim for wrongful termination against public policy].) The motion is therefore GRANTED as these causes of action. <u>Punitive damages</u>: Based on the Court's ruling on the motion as to all of Plaintiff's claims, Defendant's argument as to punitive damages is moot. <i>Counsel for Defendant shall give notice of this ruling.</i>
10.	Tapia v. Regents of the University of California 24- 1446222	: Before the Court is the continued hearing on the Motion for Reconsideration and Relief from Terminating Sanctions, etc., filed on 3/17/26 by Plaintiff Melissa Tapia in her individual capacity and in her capacity as decedent Luis Recinos' successor-in-interest ("Plaintiff"). The Motion is effectively a motion for relief under <i>C.C.P. § 473(b)</i>, based upon an attorney declaration of fault regarding discovery violations that resulted in terminating sanctions. In that context, the application for mandatory relief would be in proper form if it demonstrated that verified discovery responses had been served, for all of the outstanding discovery. (See <i>Rodriguez v. Brill</i> (2015) 234 Cal.App.4th 715, 729.) Plaintiff's counsel asserted in the Motion only that compliance was anticipated. (ROA 225, Smith Decl., ¶ 19.) Plaintiff then belatedly submitted some responses, but failed to file any reply or declaration demonstrating that this had occurred. In light of claims made by Plaintiff's counsel, the Motion was continued to 7/2/26. Counsel for both sides were directed to file a Joint Statement by 6/26/26, along with any "individual declarations." The "Joint Statement" filed on 6/26/26 addresses what Defendant Regents of the University of California ("Regents") perceived to be defects in the responses, while Plaintiff's counsel asserted that the responses overall reflect substantial compliance. But at that time, the only copies of the belated responses that were presented to the Court were those attached to the Leaf Decl. at Exs. 1-6, which showed only unverified responses, and thus did not demonstrate substantial compliance. On 7/2/26, an additional continuance was granted to allow Plaintiff to supplement again. Plaintiff has now shown, in ROA 250, that verifications were provided, and that further supplementation was also provided to address issues in the earlier responses. In light of that showing, the Motion is GRANTED as to the 3/2/26 Order (with regard to the terminating sanction and dismissal, but not as to the monetary sanctions imposed at the time). The Judgment entered on 4/8/26 is therefore VACATED. A Case Management Conference is set for TBA. In accordance with <i>C.C.P. § 473(b)</i>, Plaintiff's counsel, Smith Clinesmith, LLP, is to pay \$9,915 to Regents for reasonable compensatory legal fees and costs incurred by Regents due to Plaintiff's counsel's attorney errors, as addressed in this Motion. <i>Counsel for Regents is to give notice of this ruling.</i>

11.		
12.		
13.		
14.		
15.		
16.		
17.		
18.		
19.		
20.		
21.		
22.		
23.		
24.		
25.		
26.		
27.		
28.		
29.		
30.		